

KARNATAKA ACT NO. 28 OF 2025
THE KARNATAKA LAND REVENUE (AMENDMENT) ACT, 2025

Arrangement of Sections

Sections:

1. [Short title and commencement](#)
2. [Amendment of section 2](#)
3. [Amendment of section 4](#)
4. [Amendment of section 8](#)
5. [Amendment of section 10](#)
6. [Amendment of section 11](#)
7. [Amendment of section 21](#)
8. [Amendment of section 23](#)
9. [Amendment of section 25](#)
10. [Amendment of section 35](#)
11. [Amendment of section 36](#)
12. [Amendment of section 39](#)
13. [Amendment of section 47](#)
14. [Amendment of section 67](#)
15. [Amendment of section 69A](#)
16. [Amendment of section 79](#)
17. [Amendment of section 82](#)
18. [Amendment of section 92](#)
19. [Amendment of section 94](#)
20. [Amendment of section 94A](#)
21. [Amendment of section 94C](#)
22. [Amendment of section 94CC](#)

- 23. [Amendment of section 102](#)
- 24. [Amendment of section 104](#)
- 25. [Substitution of section 147](#)
- 26. [Amendment of section 174](#)
- 27. [Amendment of section 196](#)
- 28. [Amendment of section 197](#)

STATEMENT OF OBJECTS AND REASONS

Amendment Act 28 of 2025:- Whereas the Hon'ble Supreme Court of India in numerous reportable judgements such as Hinch Lal Tiwari vs Kamala Devi, Jagpal Singh vs State of Punjab and others and Joginder vs State of Haryana and others has reiterated from time and again that there is a necessity for the State to protect public lands, water bodies and grazing grounds etc., from wanton misuse and encroachment. In order to protect such lands the Government has decided to strengthen the existing provisions of the Karnataka Land Revenue Act, 1964.

And whereas Land Records are permanent records which have to be preserved permanently. Many cases of forgery and fraud by tampering of original documents have come to light. In order to preserve Land Records scientifically and digitising all the revenue records in lines with Digital India Land Records Modernisation Programme (DILRMP) a set of responsibilities and accountabilities have been given to the Revenue officers.

And whereas, there is a need to reflect the technological advances and procedural reforms underway in revenue administration in the state and thus to keep up with the times, by prescribing suitable procedures and forms etc., in the Rules.

And whereas, Bharatiya Nyaya Sanhita, 2023 (Central Act 45 of 2023) and Bharatiya Nagarik Suraksha Sanhita, 2023 (Central Act 46 of 2023) have been enacted in 2023 by the Union Government and corresponding proviso thereof needs to be included wherever needed, in the Act.

And whereas in the State of Karnataka and others vs the Karnataka Appellate Tribunal and ... on 31st January, 1995 and in Karnataka High Court Case No : 203678 of 2016 Annapurna w/o Vijayanad appellant vs the Deputy Commissioner and ors.respondent (2017), the Hon'ble High Court of Karnataka has gone into the issue of saving of inherent powers of the Revenue Officers under section 25 and has passed certain judgements bringing clarity.

And whereas the Assistant Commissioner has already been given powers under section 67 of the Karnataka Land Revenue Act, 1964 regarding deciding claims over any property/lands. Now, it is proposed that the Deputy Commissioner will be appellate Authority and Revenue Commissioner will have revision powers under this section.

And whereas it is considered necessary to give more clarity regarding regularisation of Unauthorised Cultivation committee

constituted in Assembly Constituencies and to introduce the accurate way of measuring distance while granting lands, defining Government kharab land and using and disposing such lands, naming or renaming of revenue areas, adding a provision which makes the Government to grant land where private agricultural lands are permanently lost due to alluvion or diluvion caused by natural occurrences like change of course of river, flash floods, landslides, flooding of lakes etc., by suitable amendments.

And whereas Government lands are more valuable lands, supposed to be used for public or Government purposes only. The Revenue officers by colluding with land grabbers are issuing orders of claims of entries have made revenue records in favour of such grabbers. In such cases no action can be initiated against such officials since section 135 of the Act bars suits being filed against State and its officials regarding entries made in the record of rights. In order to prevent fraudulent entries in revenue records by the revenue officers it is necessary for the Government to bring more stringent norms to check such practices and making them more accountable.

And whereas the General Clauses Act, 1897(Karnataka Act 10 of 1897), defines "good faith" as an act performed honestly, irrespective of whether it is done negligently or not, emphasizing honesty as the primary criterion. Contrastingly, section 2(11) of Bharatiya Nyaya Sanhita, 2023 (Central Act 45 of 2023) defines 'good faith' as "Nothing is said to be done or believed in "good faith" which is done or believed without due care and attention" meaning

that an act cannot be considered as done in "good faith" if it is performed without "due care and attention," indicating that negligence negates the existence of good faith, hence, it is necessary to restrict the application of “good faith” to all administrative procedures and exclude from quasi-judicial procedures or actions where penal provisions are prescribed.

Therefore, it is considered necessary to amend the Karnataka Land Revenue Act, 1964.

Hence, the Bill.

[L.A. Bill No.11 of 2025, File No. SAMVYASHAE 16 SHASANA 2025]

[Entry 18 of List II of the Seventh Schedule to the Constitution of India.]

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KARNATAKA ACT NO. 28 OF 2025

(First Published in the Karnataka Gazette Extra-ordinary on the 7th day of April, 2025)

THE KARNATAKA LAND REVENUE (AMENDMENT) ACT, 2025

(Received the assent of the Governor on the 5th day of April, 2025)

An Act further to amend the Karnataka Land Revenue Act, 1964.

Whereas it is expedient further to amend the Karnataka Land Revenue Act, 1964 (Karnataka Act 12 of 1964) for the purposes hereinafter appearing:

Be it enacted by the Karnataka State Legislature in the Seventy sixth year of the Republic of India, as follows:-

1. Short title and commencement.- (1) This Act may be called as the Karnataka Land Revenue (Amendment) Act, 2025.

(2) It shall come into force at once.

2. Amendment of section 2.- In the Karnataka Land Revenue Act, 1964 (Karnataka Act 12 of 1964) (hereinafter referred to as the Principal Act) in section 2, for sub-section (14-A) the following shall be substituted, namely:-

“(14-A). Land locked Government land" means Kharab Government land within a survey number having no egress or ingress by road or by foot or by cart track, not containing any water body or gomala or forest, not assigned for any purpose nor currently in use and not deemed useful for public purpose by the State Government.”

3. Amendment of section 4.- In the Principal Act, in section 4, after sub-section (4), the following shall be inserted, namely:-

“(4A). The State Government may name and alter the name of any such area and in any case where any area is renamed, then all references in any law or instrument or other document to the area under its original name shall be deemed to be references to the areas as renamed unless expressly provided otherwise.”

4. Amendment of section 8.- In the Principal Act, in section 8, after sub-section (2), the following shall be inserted, namely:-

“(3) The State Government shall prescribe without prejudice to the provisions of the Karnataka State Public Records Act, 2010(Karnataka Act 09 of 2011) and the rules made there under, the registers, accounts and other records that shall be kept and the manner of storage and retrieval by the Deputy Commissioner.

(4) The Deputy Commissioner shall keep all such registers, accounts and other records as may be prescribed under sub-section (3) and shall whenever called upon by any superior revenue officer of the region or state, prepare or retrieve records connected with the affairs of the district, which are required either for the use of the Central or the State Government or the public in such manner as may be prescribed.”

5. Amendment of section 10.- In the Principal Act, in section 10, after sub-section (3) the following shall be inserted, namely:-

“(4) The State Government shall prescribe without prejudice to the provisions of the Karnataka State Public Records Act, 2010 (Karnataka Act 09 of 2011) and the rules made there under, the registers, accounts and other records that shall be kept and the manner of storage and retrieval by the Assistant Commissioner.

(5) The Assistant Commissioner shall keep all such registers, accounts and other records as may be prescribed under sub-section (4) and he shall, whenever called upon by any superior revenue officer of the district, region or state, prepare or retrieve records connected with the affairs of the district, which are required either for the use of the Central or the State Government or the public in such manner as may be prescribed. ”

6. Amendment of section 11.- In the Principal Act, in section 11, after sub-section (2), the following shall be inserted, namely:-

“(3) The State Government shall prescribe without prejudice to the provisions of the Karnataka State Public Records Act, 2010 (Karnataka Act 09 of 2011) and the rules made there under, the registers, accounts and other records that shall be kept and the manner of storage and retrieval by the Tahsildar.

(4) The Tahsildar shall keep all such registers, accounts and other records as may be prescribed under sub-section (3) and he shall, whenever called upon by any superior revenue officer of the sub-division, district, region or state, prepare or retrieve records connected with the affairs of the district, which are required either for the use of the Central or the State Government or the public in such manner as may be prescribed.”

7. Amendment of section 21.- In the Principal Act, in section 21, the following shall be inserted at the end, namely:-

“Any misuse of seal or use of a fraudulent seal shall be a punishable offence under the Act and any other law in force.”

8. Amendment of section 23.- In the Principal Act, in section 23, in sub-section (1), in clause (b) for the words and figures “Chapter VII of the Code

of Criminal Procedure, 1898” the words, figures and brackets “Chapter VII of the Bharatiya Nagarik Suraksha Sanhita, 2023 (Central Act 46 of 2023)” shall be substituted.

9. Amendment of section 25.- In the Principal Act, in section 25, -

(i) after the words “to prevent” the words “or to correct” shall be inserted; and

(ii) the following shall be inserted at the end, namely:-

“Provided that the inherent power to review may be exercised suo motu or on an application by petitioner or respondent in the case within a period of six months from the date of the order, on the discovery of new and important matter or evidence which was not within the knowledge of the Revenue Court when the order was made, or where some mistake or error apparent on the face of the record is found, including exercise of powers without jurisdiction or misapplication of legal provision or on any analogous ground not amounting to be an error on merit.”

10. Amendment of section 35.- In the Principal Act, in section 35, for the words and figures “sections 193, 219 and 228 of the Indian Penal Code” the words, figures and brackets “sections 229, 257 and 267 of the Bharatiya Nyaya Sanhita 2023 (Central Act 45 of 2023)” shall be substituted.

11. Amendment of section 36.- In the Principal Act, in section 36, in sub-section (1),-

(i) after the words “recognised agents” the words “duly authorised in writing by name to appear on his behalf” shall be inserted; and

(ii) after the first proviso, the following shall be inserted, namely:-

“Provided further that the term hearing herein shall mean any procedure of a Revenue court from filing and admission until pronouncement.”

12. Amendment of section 39.- In the Principal Act, in section 39, after clause (iii), the following shall be inserted, namely:-

“(iv) Where such land is owned by the Government, in addition to the action contemplated above, the Deputy Commissioner or the Revenue Officer deputed by the Deputy Commissioner may also initiate action under the relevant provisions of the Act or any other law for the time being in force, for any offence of criminal trespass, injury to or destruction of public property, fraud or forgery or cheating or assault or disturbance of public tranquillity, or offence against a public servant etc.”

13. Amendment of section 47.- In the Principal Act, in section 47,-

(i) for the words and figures “sections 193 and 228 and for the purpose of section 196 of the Indian Penal Code” the words, brackets and figures “sections 229, 267 and for the purpose of section 233 of the Bharatiya Nyaya Sanhita 2023 (Central Act 45 of 2023)” shall be substituted; and

(ii) for the words, brackets and figures “section 195 and Chapter XXXV of the Code of Criminal Procedure, 1898 (Central Act 5 of 1898)” the words, brackets and figures “section 215 and Chapter XXXVII of the Bharatiya Nagarik Suraksha Sanhita, 2023(Central Act 46 of 2023)” shall be substituted.

14. Amendment of section 67.- In the Principal Act, in section 67, after sub-section (2), the following shall be inserted, namely:-

“(3) Such order shall be treated as an original order and shall be appealable only to the jurisdictional Deputy Commissioner, within a period of sixty days under clause (b) of section 49:

Provided that the order of the Deputy Commissioner shall be final and power of revision of the same within the meaning of section 56 of the Act shall lie only with the Revenue Commissioner.”

15. Amendment of section 69A.- In the Principal Act, in section 69A, in section (1), for the second and third proviso, the following shall be substituted, namely:-

“Provided further that, Land locked Government Kharab land in city areas and up to 18 kilometers from the limits of the Bruhat Bengaluru Mahanagarapalike, upto 5 kilometers from the limits of other city corporations or municipalities shall not be disposed of by the Government.

Provided also that land locked kharab shall not contain any water body or path or road or gomala or mineral deposit or quarry or forest patch or deemed forest by whichever name known to law.

Provided also that such land locked kharab shall not be in any Eco-Sensitive Zone or,-

- (a) not been notified at any time for acquisition for any public purpose,
- (b) does not lie in the line of natural drains or course of valley;
- (c) is not coming in the way of existing or proposed roads, inner or outer ring roads, national highways, by pass over ring roads including those proposed for widening and railway lines, tramways, mass rapid transit

system projects, communications and other civic facilities or public utilities;

(d) is not reserved for parks, play grounds, open places or for providing any civic amenities;

(e) is not assigned for any special purpose under section 71;

(f) or is not abutting to neighbouring property, storm water drains, tank bed areas, river course or beds and canals or below the high tension electric line.

Provided also that the distance herein shall be calculated aerially from the limits of jurisdiction of the city corporation or municipality concerned.

Provided also that, Grant of Government Lands leased for more than fifteen years to Societies, Charitable, or Religious institutions, or Educational institutions or Agriculture or other purpose prior to the date of commencement of the Karnataka Land Revenue (Second Amendment) Act, 2020 shall be disposed of, by the Government after ensuring that such land is not required for the Government, as a one-time measure in such manner, at such rates, as may be prescribed but not less than the market value guidelines prevailing, if it is for the same purpose, but not less than twice the market value guidelines for other purpose unless they fall within the conditions herein.”

16. Amendment of section 79.- In the Principal Act, in section 79, after sub-section (2), the following shall be inserted, namely:-

“Provided that the privileges in sub section (2) shall be restricted to adjoining holders only and exclusively for purposes duly ordered without assigning any right or title whatsoever and shall lapse on alienation or conversion of such adjacent holding.”

17. Amendment of section 82.- In the Principal Act, in section 82,-

(i) the existing provision shall be numbered as sub-section (1); and

(ii) after sub-section (1) as so numbered, the following shall be inserted, namely:-

“Explanation: Diluvion shall mean loss of land due to encroachment of water whether motile or stagnant, from rivers, sea, hill torrents, swamps, ground springs or lakes in cases where the lost land or major portion of it does not reappear for more than three consequent years.

(2) The loss of land due to diluvion, exceeding 25 percent of a holding, or 20 gunta whichever is more, may be compensated by available contiguous alluvial land on application to the Deputy Commissioner, as per section 92 subject to the limit of land lost by diluvion.”

18. Amendment of section 92.- In the Principal Act, in section 92,-

(i) for sub-section (2), the following shall be substituted, namely:-

“(2) The price of the land so offered shall not exceed the guideline value of equivalent nearby land”; and

(ii) in sub-section (3), for the words “without any restrictions as to the price thereof” the words “through public auction” shall be substituted.

19. Amendment of section 94.- In the Principal Act, in section 94, in sub section (1),-

(i) for the words “five hundred rupees” the words “five thousand rupees” shall be substituted; and

(ii) for the words “one thousand rupees” the words “ten thousand rupees” shall be substituted.

20. Amendment of section 94A.- In the Principal Act, in section 94A, in sub section (1),-

(i) for the words “for each constituency of the Legislative Assembly” the words “a committee for constituency of the Legislative Assembly, wherever necessary” shall be substituted; and

(ii) after the third proviso to sub-section (4), the following shall be inserted, namely:-

“Provided also that the distance herein shall be calculated aerially from the limits of jurisdiction of the city corporation or municipality concerned.”

21. Amendment of section 94C.- In the Principal Act, in section 94C, in clause (vi-e),-

(i) for the words and figures “upto 4,000 sq.feet” the words and figures “not exceeding 4,000 square feet ” shall be substituted.

(ii) after the proviso, the following shall be inserted, namely:-

“Provided further that the distance herein shall be calculated aerially from the limits of jurisdiction of the city corporation or municipality concerned.”

22. Amendment of section 94CC.- In the Principal Act, in section 94CC,-

(i) in clause (viii), for the figures and words “20' x 30' feet” the figures and words “600 square feet” shall be substituted;

(ii) in the proviso, for the figures and words “30' x 40' feet” the figures and words “1200 square feet” shall be substituted; and

(iii) after the second proviso, the following shall be inserted, namely:-

“Provided also that the distance herein shall be calculated aerially from the limits of jurisdiction of the city corporation or municipality concerned.”

23. Amendment of section 102.- In the Principal Act, in section 102, after the first proviso, the following shall be inserted, namely:-

“Provided further that no occupant shall be entitled to relinquish any land to which he does not have clear title or where in any part of the survey number, the title lies with the State Government or the said land or part of it is A or B Kharab as defined in the Act.”

24. Amendment of section 104.- In the Principal Act, in section 104, the following shall be inserted at the end, namely:-

“Provided that where such land is owned by the Government, in addition to the action contemplated above, the Tahsildar or the authorised Revenue Officer may also initiate action under the relevant provisions of this Act or any other law for the time being in force, for any offence of criminal trespass, injury to or destruction of public property, fraud or forgery or cheating or assault or disturbance of public tranquility, or offence against a public servant etc.

Provided further that where any unauthorised structure is erected, the entire cost incurred by the Tahsildar in removing the same shall be recoverable as an arrears of land revenue and where any damage to public property done by the encroacher, either during the course of eviction or during the encroachment, the cost of restoration thereof shall be recoverable as arrears of land revenue.

Explanation: For the purposes of this section, public property shall mean not only the encroached property, but also any materials and equipment hired or employed by the Tahsildar to summarily evict the encroachment.”

25. Substitution of section 147.- In the Principal Act, for section 147, the following shall be substituted, namely:-

“147. Penalty for injuring boundary marks.- (1) Any person wilfully erasing, removing or injuring a boundary mark, or unauthorizedly constructing a boundary mark, shall, after a summary inquiry before the Tahsildar, or before a Survey Officer holding a Gazetted rank, be liable to a fine not exceeding five hundred rupees for each mark so erased, removed, injured, displaced or unauthorizedly constructed.

(2) The fine imposed under sub-section (1) shall be recovered as an arrear of land revenue and out of it an amount not exceeding one half may be awarded by the officer imposing the fine to the informer or informers, if any.”

26. Amendment of section 174.- In the Principal Act, in section 174, for the words “twenty five percent” the words “fifteen percent” shall be substituted.

27. Amendment of section 196.- In the Principal Act, in section 196, in clause (a), the following shall be inserted, at the end, namely:-

“except which is done or believed without due care and attention or when he corruptly or maliciously makes or pronounces in any stage of a formal or summary enquiry, any report, order, verdict, or decision which he knows to be contrary to the law”.

28. Amendment of section 197.- In the Principal Act, in section 197, in sub-section (2), after clause (jj), the following shall be inserted, namely:-

“(kk) Any matter related to setting up of permanent or adhoc committees of competent persons to suggest reforms or procedures relevant to this Act, technological inputs, document maintenance, database creation and management, rates, fees, penalties, or methods of training for officials empowered in this Act for effective enforcement and execution of proviso of this Act;

(ll) Procedure to be followed by revenue courts at all levels for original orders and appeal cases;

(mm) Norms and procedures to be followed with respect to section 79;

(nn) Forms, formats, seals, letterheads, holograms, fonts, electronic signatures and templates for effective implementation. and

(oo) Prescribing procedures for production, maintenance and retrieval of records pertaining to the Revenue Department.

By Order and in the name of
the Governor of Karnataka,

G. SRIDHAR
Secretary to Government
Department of Parliamentary
Affairs and Legislation